

STATE OF NEW YORK

6570--A

2025-2026 Regular Sessions

IN SENATE

March 17, 2025

Introduced by Sens. HARCKHAM, BAILEY, BRISPORT, BROUK, COMRIE, COONEY, FAHY, FERNANDEZ, GOUNARDES, HINCHEY, JACKSON, KAVANAGH, KRUEGER, LIU, MAY, MAYER, MYRIE, PALUMBO, RAMOS, ROLISON, C. RYAN, SALAZAR, SEPULVEDA, SERRANO, SKOUFIS, STAVISKY, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- recommitted to the Committee on Environmental Conservation in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law and the public service law, in relation to enacting the accelerate solar for affordable power (ASAP) act

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Short title. This act shall be known and may be cited as
2 the "accelerate solar for affordable power (ASAP) act".
- 3 § 2. Legislative findings and intent. The legislature finds that
4 increasing distributed solar energy capacity and lowering intercon-
5 nection costs are essential for achieving the state's affordability,
6 economic development, and environmental goals. It is the intent of the
7 legislature to amend the climate leadership and community protection act
8 to set a new target for distributed solar energy capacity and direct the
9 public service commission to advance reforms to the utility intercon-
10 nection process to ensure timely and cost-effective integration of new
11 distributed energy resources, such as solar and energy storage systems,
12 into the electric distribution system.
- 13 § 3. Paragraph e of subdivision 13 of section 75-0103 of the environ-
14 mental conservation law, as added by chapter 106 of the laws of 2019, is
15 amended to read as follows:
- 16 e. Measures to achieve [~~six~~] twenty gigawatts of distributed solar
17 energy capacity installed in the state by two thousand [~~twenty-five~~]

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 thirty-five, nine gigawatts of offshore wind capacity installed by two
2 thousand thirty-five, a statewide energy efficiency goal of one hundred
3 eighty-five trillion British thermal units energy reduction from the two
4 thousand twenty-five forecast; and three gigawatts of statewide energy
5 storage capacity by two thousand thirty.

6 § 4. The public service law is amended by adding a new section 66-x to
7 read as follows:

8 § 66-x. Interconnection reforms. 1. (a) Within ninety days of the
9 effective date of this section the commission shall issue an order
10 requiring every electric corporation to file a report with the commis-
11 sion which shall include itemized costs of completed upgrades to the
12 electric distribution system required in order to interconnect new
13 distributed energy resources in the prior calendar categorized by
14 upgrade type and equipment type annually by March thirty-first. Such
15 reports shall be accompanied by sufficient supporting documentation as
16 determined by the commission, and shall be subject to inspection and
17 public comment before adoption by the commission. Adopted reports
18 received pursuant to this paragraph shall be the basis for electric
19 corporations to develop future distribution upgrade cost estimates.

20 (b) Electric corporations shall track actual costs of all distribution
21 upgrades they perform and disclose such costs to the department and to
22 the distributed energy resource company that paid for the upgrade. The
23 department shall maintain a database on its publicly accessible website
24 of all disclosed cost data and annual reports submitted pursuant to
25 paragraph (a) of this subdivision.

26 2. The commission shall consider proposals to create greater cost-cer-
27 tainty for distribution upgrades in order to limit the risk of uncapped
28 utility cost overruns, and the commission shall issue an order to
29 increase cost-certainty and counteract utility cost overruns within one
30 hundred eighty days of the effective date of this section.

31 § 5. Subdivision 1 of section 66-j of the public service law is
32 amended by adding a new paragraph (j) to read as follows:

33 (j) "Flexible interconnection" means the use of smart-grid technology
34 to monitor and actively manage distributed energy resources.

35 § 6. Section 66-j of the public service law is amended by adding two
36 new subdivisions 2-a and 6-a to read as follows:

37 2-a. Flexible interconnection. (a) The commission shall direct every
38 electric corporation to develop a proposal for a flexible intercon-
39 nection program to be established in the state. Within ninety days of
40 the effective date of this subdivision, electric corporations with
41 active flexible interconnection pilot projects shall file a flexible
42 interconnection implementation plan, including proposed tariff modifica-
43 tions and interconnection agreement contract language, with the commis-
44 sion. The commission shall solicit public comments on the electric
45 corporation proposals, consider alternative proposals, convene at least
46 two technical conferences, and consult with stakeholders throughout the
47 process of program development. Every electric corporation which does
48 not have an active flexible interconnection pilot project shall file
49 comments in response to the initial proposal and may file alternative
50 proposals for consideration. Within one year of the effective date of
51 this subdivision, the commission shall issue an order establishing a
52 uniform statewide flexible interconnection program. Such program shall
53 include clearly defined limits to annual energy curtailment for solar
54 energy systems and shall include transparent pricing for customer-funded
55 equipment, software and operating expenses. This program shall be tech-
56 nology agnostic, and electric corporations must consider customer-pro-

1 posed flexible interconnection solutions that meet the technical
2 requirements of the electric corporation.

3 (b) The commission shall establish guidelines and timelines for the
4 implementation of flexible interconnection procedures to lower the cost
5 and shorten the timeline to integrate distributed energy resources.

6 6-a. Distributed energy resource capacity expansion. (a) Within three
7 months of the effective date of this subdivision, the commission shall
8 establish a distribution system investment program whose purpose is to
9 identify and direct electric corporations to implement proactive
10 distribution upgrades that create distributed energy resource hosting
11 capacity. Such program shall be integrated into the coordinated grid
12 planning process, and electric corporations shall submit annual reports
13 to the commission detailing actions taken and electric corporation
14 investments made to expand hosting capacity for distributed energy
15 resources.

16 (b) The commission shall establish a defined distribution system volt-
17 age threshold of 69KV, excluding any lines under federal energy regula-
18 tory commission jurisdiction, such that electric infrastructure owned by
19 electric corporations with a voltage at or below 69KV shall be consid-
20 ered distribution for the purposes of distributed energy resource inter-
21 connection and distributed energy resource compensation. All distributed
22 energy resources seeking to interconnect to the distribution system
23 shall be eligible for interconnection under the New York state standard-
24 ized interconnection requirements and shall be eligible for compensation
25 under the value of distributed energy resources tariff.

26 § 7. Implementation. 1. The New York state energy research and devel-
27 opment authority (NYSERDA), in collaboration with the department of
28 public service, is hereby directed to file a proposal to continue the
29 NY-Sun program to develop and implement initiatives necessary to cost-
30 effectively achieve the new distributed solar goal set forth in this
31 act. The implementation plan shall include incentives and other initi-
32 atives to support rooftop solar for homes and businesses as well as
33 community solar, with at least thirty-five percent of program investment
34 benefiting low- to moderate-income households and disadvantaged communi-
35 ties. The implementation plan may include rate design improvements and
36 additional interconnection reforms to lower the cost of the program.

37 2. From available funds, the public service commission is hereby
38 directed to issue an order authorizing additional funding to NYSERDA for
39 the continuation of the NY-Sun program. Such funding shall be sufficient
40 to support the development and implementation of the initiatives
41 required to meet the new distributed solar goal. NY-Sun funding may be
42 authorized by the commission in increments to control program costs,
43 provided that these increments must be sufficient to support at least
44 two gigawatts of solar energy capacity each. The commission shall ensure
45 that the NY-Sun program operates continuously, without interruption,
46 until the distributed solar goal is reached.

47 3. The public service commission is hereby directed to issue orders
48 necessary to effectuate the provisions and modifications set forth in
49 this act.

50 § 8. This act shall take effect immediately.